

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Mandate-Stay Grant

Entered July 6, 2026

The City of Norvale's motion to stay issuance of the mandate pending a possible petition for a writ of certiorari is granted for a limited period. The motion identifies a substantial question concerning the continuation of preliminary protection after the appellate decision found defects in specificity and security, and it explains why implementation of the corrective remand before a petition decision could impose avoidable burdens. The Court expresses no view on whether certiorari will be sought or granted and does not reconsider the June 18 disposition.

Good cause supports a defined thirty-day interval. Existing preliminary protection remains operative while the mandate is withheld, so the grant does not restore the paid-speaker roster or charge. The City remains subject to the current restraint and may continue only the neutral operational coordination preserved by that restraint. The Guild therefore retains protection while the City completes municipal review of the proposed petition.

Under Federal Rule of Appellate Procedure 41(d)(2), issuance of the mandate is STAYED through August 5, 2026, unless the Court ends the stay earlier. This period is shorter than the rule's ninety-day maximum. No security is required on the present showing because the mandate stay does not lift the existing injunction or create an identified monetary risk.

On or before August 5, the City shall notify the circuit clerk in writing whether it has filed a certiorari petition, obtained an extension of the filing period, or elected not to proceed. A timely notice of a filed petition or granted extension will have only the effect provided by Rule 41(d) (2), subject to any further order. Silence does not enlarge the stay beyond the date fixed here.

This is an affirmative grant of a mandate stay, not a denial that starts the ordinary seven-day period described in Rule 41(b). Consequently, the mandate will not become eligible on July 13 merely because seven days have elapsed since entry of this order. The controlling event is termination, expiration, or authorized continuation of the stay. When that event occurs, the Court may direct issuance at the time stated in its order.

The judgment and opinion remain unchanged. The stay neither recalls a mandate already issued nor transfers authority to the district court before issuance. It does not decide the unresolved complaint, modify the allocation of appellate costs, or prevent either party from seeking appropriate relief based on a genuinely changed event condition. The clerk shall withhold the mandate, monitor the notice requirement, and serve this order electronically on counsel. Entered by the panel on July 6, 2026.